

24STCV30170 24STCV30170

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 24STCV30170 Hearing Date: July 14, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

KARI RILEY

vs.

ENDLESS BLU, INC.

Case

No.: 24STCV30170

Hearing Date: July 14, 2026

Plaintiff's

is awarded \$57,500.00 in attorney fees.

On

11/15/2024, Plaintiff Kari Riley (Plaintiff) filed suit against Defendant

Endless Blu, Inc. (Defendant), alleging damages and waiting time penalties for nonpayment of wages.

On

4/8/2026, Plaintiff Kari Riley (Plaintiff) moved for attorney fees totaling \$67,300.00.

Legal Standard

The party

claiming attorneys' fees must establish entitlement to such fees and the reasonableness of the fees claimed. (Civic Western Corporation v. Zila Industries, Inc. (1977) 66 Cal.App.3d 1, 16.) "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties[.]" (CCP § 1021.)

"It is well

established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623.)

In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (Id.)

In

determining what constitutes a reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the court may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorneys' efforts, their learning, their age, and their experience in the particular type of work demanded the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (Stokus v. Marsh (1990) 217 Cal.App.3d 647, 657.)

In

determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the

reasonable hourly rate. “Fundamental to its determination ... [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney ... in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV); see also Weber v. Langholz (1995) 39 Cal.App.4th 1578, 1587 (“The trial court could make its own evaluation of the reasonable worth of the work done in light of the nature of the case, and of the credibility of counsel’s declaration unsubstantiated by time records and billing statements.”))

Reasonable

attorney fees should be based on an objective standard of reasonableness, i.e., the market value of services rendered, not on some notion of cost incurred. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1090.) The value of legal services performed in a case is a matter in which the trial court has its own expertise. (Id. at 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (Id.) The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. (Id.)

Discussion

Plaintiff

seeks attorney fees totaling \$67,300.00, as the prevailing party in this action.

Rate

Plaintiff’s

counsel Timothy A. Hall claims a rate of \$500/hour. In support, counsel notes

that he has been licensed to practice law since 2003 and has owned and managed his own firm since 2004. His practice is primarily devoted to (1) waiting time penalty actions brought by models and actors for failure to timely pay wages, and (2) misappropriation of publicity claims involving unauthorized use of likeness. This action falls within the first category.

The Court

finds Mr. Hall's rate to be reasonable based on the relevant factors. (Stokus, supra, 217 Cal.App.3d at p. 657.)

Hours

Mr.

Hall claims 134.6 hours on this matter.

After review,

the Court finds that that billing records mostly reflect work reasonably necessary to prosecute Plaintiff's wage claim from inception through judgment and post-judgment fee work. However, the Court finds that the 98.6 hours claimed for the motion for summary judgment—more than 73% of the total hours claimed for the entire case—to be "excessive, redundant, or otherwise unnecessary." (Hensley v. Eckerhart, 461 U.S. 424, 434.) As a result, and given the Court's power to make "across-the-board percentage cuts either in the numbers of hours claimed or in the final lodestar figure," the Court reduces the total hours reasonably billed to 115 hours. (Gonzalez v. City of Maywood (9th Cir. 2013) 729 F.3d 1196, 1203 (Gonzalez).

Based

on the forgoing, Plaintiff's is awarded \$57,500.00 in attorney fees.

It is so ordered.

Dated: July

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.